

Terms of Service

Last updated: July 8, 2026

App: Piwi **Developer:** Solo founder (Tunisia) **Contact:** piwi.support@gmail.com

1. Acceptance of Terms

By downloading, installing, or using the Piwi mobile application (the “App”), you agree to be bound by these Terms of Service (“Terms”). If you do not agree to these Terms, you must not use the App.

These Terms constitute a legally binding agreement between you and Piwi. By creating an account or using any feature of the App, you acknowledge that you have read, understood, and agree to be bound by these Terms and our Privacy Policy.

2. Eligibility

You must be at least **13 years of age** to use the App. By using the App, you represent and warrant that:

- You are at least 13 years old;
- You are not located in a country that is subject to a U.S. government embargo or that has been designated by the U.S. government as a “terrorist-supporting” country;
- You are not listed on any U.S. government list of prohibited or restricted parties;
- You have the legal capacity to enter into a binding contract.

If you are between 13 and 18 years old, you must have permission from a parent or guardian to use the App.

3. Account Registration

3.1 Creating an Account

To access certain features of the App, you must register for an account. You may register using:

- Email and password; or
- Google OAuth sign-in.

When registering, you agree to provide accurate, current, and complete information, including your first name, last name, governorate (region), and gender.

3.2 Account Security

You are responsible for maintaining the confidentiality of your account credentials and for all activities that occur under your account. You agree to:

- Choose a strong password;
- Not share your account with anyone;
- Notify us immediately at piwi.support@gmail.com if you suspect unauthorized access;

- Not create accounts by automated means or bots.

3.3 One Account Per User

You may maintain only one active account unless explicitly authorized by us. We reserve the right to suspend or terminate duplicate accounts.

4. License to Use

4.1 Grant of License

Subject to your compliance with these Terms, we grant you a limited, non-exclusive, non-transferable, non-sublicensable, revocable license to download, install, and use the App on your personal mobile device solely for your personal, non-commercial use.

4.2 License Restrictions

You agree not to:

- Copy, modify, or create derivative works of the App;
 - Reverse engineer, decompile, or disassemble the App;
 - Rent, lease, lend, sell, sublicense, or distribute the App;
 - Remove any copyright, trademark, or proprietary notices from the App;
 - Use the App for any illegal or unauthorized purpose;
 - Interfere with or disrupt the App or its servers;
 - Attempt to gain unauthorized access to any part of the App or its systems;
 - Use automated scripts, bots, or scrapers to access the App;
 - Upload viruses, malware, or other harmful code;
 - Impersonate another person or misrepresent your identity;
 - Harass, abuse, or harm other users;
 - Post false, misleading, or fraudulent result claims.
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5. User-Generated Content

5.1 Content You Submit

The App allows you to submit content, including:

- Profile information (name, governorate, gender, date of birth);
- Race result claims with finish times and evidence photos;
- Wishlist entries;
- Follow relationships.

5.2 Content Standards

You represent and warrant that any content you submit:

- Is accurate and truthful;

- Does not infringe on any third party's intellectual property rights;
- Does not violate any applicable law;
- Does not contain defamatory, obscene, or offensive material;
- Evidence photos submitted for result claims must be your own and must accurately reflect your race participation.

5.3 Result Claims

When you submit a race result claim:

- You must provide accurate finish times;
- Evidence photos must be genuine and unaltered;
- We reserve the right to verify claims and reject fraudulent submissions;
- Approved claims become part of public leaderboards.

5.4 Content License to Us

By submitting content to the App, you grant us a non-exclusive, royalty-free, worldwide license to use, display, and distribute your content solely for the purpose of operating and improving the App. This license terminates when you delete your account or the relevant content.

6. Leaderboards and Public Data

6.1 Public Leaderboards

Race results and rankings displayed on public leaderboards are visible to all App users. By submitting a result claim that is approved, you acknowledge that your:

- Name (first and last);
- Finish time;
- Gender category;
- Age category (derived from date of birth);
- Governorate;

will be publicly displayed on leaderboards.

6.2 Opting Out of Leaderboards

You may hide your profile from public leaderboards at any time by toggling "Hide on Leaderboard" in your Settings. When enabled, your name will not appear on public leaderboards, but your results may still be counted in aggregate statistics.

7. Intellectual Property

7.1 Our Intellectual Property

The App, including all software, code, designs, graphics, logos, trademarks, and content (excluding user-generated content), is owned by us or our licensors and is protected by copyright, trademark, and other intellectual property laws.

7.2 No Transfer of Rights

These Terms do not grant you any ownership rights in the App or its content. All rights not expressly granted are reserved by us.

7.3 Feedback

If you provide feedback, suggestions, or ideas about the App, you grant us a perpetual, irrevocable, royalty-free license to use that feedback for any purpose without compensation or attribution.

8. Third-Party Services

8.1 Third-Party Integrations

The App integrates with third-party services, including:

- **Supabase** — for database, authentication, and file storage;
- **PostHog** — for anonymous analytics (EU-hosted);
- **Google** — for OAuth sign-in.

8.2 Third-Party Terms

Your use of these third-party services is subject to their respective terms and privacy policies. We are not responsible for the practices of these third parties.

8.3 External Links

The App may contain links to external websites or resources (e.g., race registration pages, organizer websites). We are not responsible for the content, accuracy, or availability of these external resources.

9. Termination

9.1 Termination by You

You may terminate your account at any time by using the “Delete Account” feature in the App’s Settings or by contacting us at piwi.support@gmail.com. Upon termination:

- Your account will be soft-deleted immediately;
- Your personal data will be permanently erased within 30 days;
- Your published results on public leaderboards may be retained in anonymized form.

9.2 Termination by Us

We reserve the right to suspend or terminate your account, with or without notice, if we believe you have:

- Violated these Terms;
- Provided false or misleading information;
- Submitted fraudulent result claims;
- Engaged in harassment or abuse of other users;
- Violated any applicable law.

9.3 Effect of Termination

Upon termination, your license to use the App ends immediately. You must cease all use of the App and delete all copies from your devices. Termination does not affect any provisions that by their nature should survive termination.

10. Disclaimers

10.1 “AS IS” Basis

THE APP IS PROVIDED ON AN “AS IS” AND “AS AVAILABLE” BASIS WITHOUT WARRANTIES OF ANY KIND, EITHER EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, OR NON-INFRINGEMENT.

10.2 No Guarantee of Accuracy

While we strive to provide accurate race information, results, and rankings, we do not guarantee:

- The accuracy, completeness, or timeliness of race data;
- The accuracy of user-submitted result claims;
- The availability or reliability of the App at all times;
- That the App will meet your specific requirements.

10.3 Race Information

Race dates, locations, distances, and registration information are provided by race organizers or sourced publicly. We are not responsible for changes, cancellations, or errors in race information. Always verify details directly with the race organizer.

10.4 Health and Safety

Piwi is a race discovery and results platform, not a medical or fitness advisor. Consult a healthcare professional before participating in endurance sports. We are not responsible for any injuries or health issues resulting from race participation.

11. Limitation of Liability

11.1 Limitation

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, IN NO EVENT SHALL PIWI, ITS DEVELOPER, OR ITS AFFILIATES BE LIABLE FOR:

- ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES;
- ANY LOSS OF PROFITS, REVENUE, DATA, OR GOODWILL;
- ANY DAMAGES ARISING FROM YOUR USE OF OR INABILITY TO USE THE APP;
- ANY DAMAGES ARISING FROM THIRD-PARTY CONTENT OR SERVICES.

11.2 Cap on Liability

OUR TOTAL LIABILITY TO YOU FOR ALL CLAIMS ARISING OUT OF OR RELATING TO THESE TERMS OR THE APP SHALL NOT EXCEED THE AMOUNT YOU HAVE PAID TO US FOR THE APP IN THE PAST TWELVE (12) MONTHS. IF YOU HAVE NOT PAID ANYTHING, OUR LIABILITY IS CAPPED AT ZERO.

11.3 Exceptions

The above limitations do not apply to:

- Death or personal injury caused by our negligence;
 - Fraud or fraudulent misrepresentation;
 - Any liability that cannot be excluded under applicable law.
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12. Indemnification

You agree to indemnify, defend, and hold harmless Piwi, its developer, and affiliates from and against any claims, liabilities, damages, losses, and expenses (including reasonable legal fees) arising out of or in any way connected with:

- Your access to or use of the App;
 - Your violation of these Terms;
 - Your violation of any third-party right;
 - Any content you submit to the App.
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13. Governing Law and Disputes

13.1 Governing Law

These Terms shall be governed by and construed in accordance with the laws of **Tunisia**, without regard to its conflict of law provisions.

13.2 Dispute Resolution

Any dispute arising out of or relating to these Terms or the App shall first be attempted to be resolved through good-faith negotiation. If negotiation fails, disputes shall be resolved through binding arbitration in Tunis, Tunisia, in accordance with the rules of the Tunisian Arbitration Code.

13.3 Class Action Waiver

You agree that any proceedings will be conducted only on an individual basis and not in a class, consolidated, or representative action.

14. Changes to These Terms

We reserve the right to modify these Terms at any time. We will notify you of material changes by:

- Updating the “Last updated” date at the top of these Terms;
- Displaying a notice within the App;
- Sending an email to the address associated with your account.

Your continued use of the App after any changes constitutes acceptance of the revised Terms. If you do not agree to the changes, you must stop using the App and delete your account.

15. Severability

If any provision of these Terms is found to be invalid, illegal, or unenforceable by a court of competent jurisdiction, that provision shall be modified to the minimum extent necessary to make it enforceable, and the remaining provisions shall remain in full force and effect.

16. Entire Agreement

These Terms, together with our Privacy Policy, constitute the entire agreement between you and Piwi regarding the App and supersede all prior agreements, understandings, and communications, whether written or oral.

17. Waiver

Our failure to enforce any right or provision of these Terms shall not constitute a waiver of that right or provision. Any waiver must be in writing and signed by an authorized representative of Piwi.

18. Contact Information

If you have any questions, concerns, or feedback about these Terms, please contact us:

Email: piwi.support@gmail.com

Response time: We aim to respond within 48 hours.

19. App Store Terms

19.1 Google Play

If you downloaded the App from Google Play, you also agree to the Google Play Terms of Service. In the event of any conflict between these Terms and the Google Play Terms of Service, the Google Play Terms of Service shall prevail only to the extent of the conflict.

19.2 Apple App Store

If you downloaded the App from the Apple App Store, you also agree to the Apple Media Services Terms and Conditions. These Terms are between you and Piwi only, not with Apple. Apple is not responsible for the App or its content.

These Terms of Service are effective as of July 8, 2026.